

John N. Cuomo

Attorney at Law
11 Fern Drive
Commack, NY 11725
631-403-0515
631-326-9082 (fax)
johnncuomo@gmail.com

May 28, 2021

JASON M. BARBARA & ASSOCIATES, P.C.
Attorneys for Richard Calvagno II
3 Dakota Drive, Suite 300
New Hyde Park, NY 11042

Re: Diane C. DeSousa, *et al.* v. Richard A. Calvagno II, *et al.*
Suffolk Supreme, Index 600371/2021

Mr. Barbara:

I am in receipt of your May 24, 2021, letter entitled "Notice to Cease and Desist".

Both of my clients categorically deny each and every claim and allegation presented in your letter.

Any interactions between the parties have only resulted because of repeated, antagonistic, hostile and threatening activities/verbal attacks instigated by Defendant Calvagno. The purported May 21, 2021 incident to which you refer, was witnessed by Mrs. DeSousa and three or four workmen working at the DeSousa home. The events of that date (which was actually, May 20, 2021) are painted decidedly differently from their point of views.

The claims of verbal abuse of Defendant Calvagno parents are equally unfounded. Mr. DeSousa had parked, his vehicles, in front of his home and in the vicinity of the Defendant's commercial, extended tow truck parked in front of the DeSousas' home. When Defendant Calvagno's father pointed out that Mr. DeSousa's vehicles were blocking the Defendant's commercial vehicle, Mr. DeSousa reports he moved his vehicle after a civil conversation with Defendant Calvagno's father. Incidentally, Defendant Calvagno's home is opposite the street from the Plaintiffs home, has a four-car driveway, ample curb frontage with legal parking.

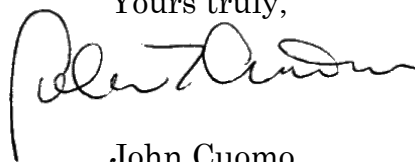
It is clear that since the inception of this action, Defendant Calvagno's demeanor and actions have become increasingly threatening, hostile and provocative. As apparently done by your client, this behavior has also been reported and documented with the local police department.

For example on April 4, 2021, Defendant Calvagno revved his car's engine and hurled insults at the Plaintiffs' and their family who were in attendance to celebrate Easter Sunday.

Both of my clients are in their late 70's, each have heart conditions and a myriad of other physical ailments. These are not ruffians looking to pick a fight. These are older people looking to live quiet, peaceful lives, with that in mind the Plaintiffs' demand for an immediate cessation of Defendant Calvagno's harassment by his antagonistic, hostile and threatening activities and verbal attacks.

Finally, your letter indicates "[p]lease note that these events are recorded", pursuant to our demand in this action, these, as well as and any other images, in any all forms must be maintained and provided. To date, only minimal imagery has been provided, and none of which indicates any type of video capture.

Yours truly,

A handwritten signature in black ink, appearing to read "John Cuomo", written over a horizontal line.

John Cuomo

cc:

WARSHAW BURSTEIN, LLP
Attorneys for Patrick J. Karcher
575 Lexington Avenue, 7th Floor
New York, NY 10022